HAZEL CHIPO TARUVINGA
versus
GODWIN KUSHAMBA
and
PRISCILLAR KUSHAMBA
and
MASTER OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
TSANGA J
HARARE;8 January 2025

Chamber application (Reasons)

TSANGA J

On 19 November 2025 I dismissed a chamber application for the appointment of a curator for a minor child born on 1 December 2007. Both parents are alive. The application was made by an aunt in the United Kingdom who intended to apply for guardianship on the auspices that before she moved to the United Kingdom she had assisted the parents to look after their child.

In essence, the application was made by a third party where both parents are alive. The legal position on the limited circumstances under which parents can surrender guardianship to a third party is generally through adoption as laid out in *Kutsanzira* v *The Master* 2012 (2) 91 (H). This process is done in the Magistrate's court by way of a proper enquiry. The application for the appointment of a curator was not a proper one under the circumstances. Further, the child in question was also 11 days shy of being a major at the time the order was dismissed.

These were the reasons for dismissing the chamber application.

TSANGA J……

MT Chiwaridzo Attorneys – At- Law: Applicant's Legal Practitioners